

Carter v. Officer Blake - Order Denying Qualified Immunity

Order Denying Qualified Immunity in Carter v. Officer Blake. Procedural posture:

District court denied qualified immunity at summary judgment after finding disputed facts about a traffic-stop seizure. Record material: The district court denied

qualified immunity on excessive-force and unlawful-seizure theories. Issue: Clearly

established law. Standard of review: de novo. Record excerpt: Plaintiff deposition

excerpt. Plaintiff testified that he complied with commands before being pulled from

the vehicle and handcuffed tightly. Nature of suit: Civil Rights - Section 1983. Lower

tribunal: U.S. District Court for the Middle District of North Carolina.